

IN CONTEXT

FOCUS

US federal law

BEFORE

1787 The text of the new US Constitution is adopted, making the judiciary a “third branch” of government.

1789 Congress passes the Judiciary Act, which sets out some of the Supreme Court’s powers.

AFTER

1857 In *Dred Scott v. Sandford*, Chief Justice Roger Taney rules that the word “citizens” in the Constitution does not refer to black people. This much-vilified decision is later overturned by the Fourteenth Amendment.

1973 In *Roe v. Wade*, the Supreme Court rules that the Constitution protects the right of a woman to seek an abortion.

The Supreme Court is the highest federal court in the US. It was specified by the Constitution and signed into force by President George Washington with the Judiciary Act of 1789. This decreed that the Court would have six judges (also known as justices). Nominated by the president and confirmed by the Senate, they usually hold office for life (until they retire or die), and their salary cannot be decreased during their term. In this way, the justices are kept independent of government.

Although the US Constitution provided for the Supreme Court to exist, it did not codify (write down in law) its powers and prerogatives. Rather, the Court’s powers have, over time, been defined by its own rulings. One such power is that of judicial review.

Judicial review allows the Court to decide whether a legislative act (produced by Congress), executive act (produced by the president), or judicial act (produced by a lower court) violates the Constitution. This provides an essential system

of checks and balances, ensuring limitations on the powers of each of the three branches of government. The Supreme Court, therefore, has the final word on any constitutional conflict—a unique role in US government.

Marbury v. Madison

The appointment of the fourth chief justice, John Marshall, in 1801, was pivotal for the Supreme Court. More robust than previous chief justices, Marshall was eager to assert the Court’s power and political autonomy. His opportunity came in 1803, when a case was brought by William Marbury.

In 1801, outgoing Federalist president John Adams had passed an act that allowed him to nominate a number of new judges, including Marbury. (The Federalists and the Democratic-Republicans were the first US political parties.) The government of the new president, Democratic-Republican Thomas Jefferson, was unhappy with so many Federalist appointees, who would advance a nationalistic

The Supreme Court has an official seal, which is kept in the custody of the Clerk of the Court. It contains a number of symbols, each representing different and important elements of the Court’s authority. The seal differs from the coat of arms of the United States in only one respect: the single star at the base, beneath the tail of the eagle.



The single star represents the creation of “one Supreme Court” by the US Constitution in 1789.



The eagle’s head represents the president. Its nine tail feathers symbolize the nine judges of the Supreme Court.



The shield resembles the flag of the United States. Its 13 stripes represent the 13 original states.



The motto on the scroll in the eagle’s beak reads *E pluribus unum*: “Out of many, one.”



A constellation of 13 stars symbolizes the emergence of the US as an independent nation.



The olive branch in the eagle’s right talon represents peace. The eagle’s gaze is turned toward this side.



A sheaf of arrows held in the eagle’s left talon symbolizes war, showing that the nation is always in readiness for war.